BEFORE THE SOLE ARBITRATOR: HON'BLE MR. JUSTICE (RETD.) A. K. SIKRI
IN ARBITRATION CASE NO. ARB-COMM-2023-104

IN THE MATTER OF ARBITRATION BETWEEN:
APEX INFRASTRUCTURE LIMITED ...CLAIMANT
REGISTERED OFFICE: BKC, BANDRA EAST, MUMBAI

AND

METRO RAIL CORPORATION LIMITED ...RESPONDENT
REGISTERED OFFICE: METRO BHAWAN, BARAKHAMBA ROAD, NEW DELHI

STATEMENT OF CLAIM ON BEHALF OF CLAIMANT

1. The Claimant enters this Statement of Claim pursuant to Clause 18.2 of the EPC Contract Agreement No. MRCL/CIVIL/PKG-4/2020 dated 15.08.2020.

2. The contract awarded to the Claimant was for the construction of 4 elevated viaduct stations for a total lump-sum contract price of INR 320 Crores.

SUMMARY OF CLAIMS

CLAIM NO. 1: ESCALATION OF MATERIAL COSTS (STEEL & CEMENT)
Due to respondent’s delay of 420 days in handing over encumbrance-free Right of Way (ROW), raw material prices surged by 38.5%.
Amount claimed: INR 24,50,00,000 (Twenty-four Crores Fifty Lakhs).

CLAIM NO. 2: WRONGFUL IMPOSITION OF LIQUIDATED DAMAGES
Respondent illegally withheld Milestone-3 retention payments of INR 18,30,00,000.

TOTAL CLAIM:
INR 42,80,00,000 (Forty-two Crores Eighty Lakhs) along with 12% per annum interest pendente-lite and future interest until final realization.